

ENIGMA

Enigma Standard Terms & Conditions

These Standard Terms apply to all estimates, proposals, scopes of work and services schedules supplied by Enigma Communication Pty Ltd ABN 83 072 426 709 (Enigma), unless Enigma and the Client have entered into a separate written client/agency, master services or other agreement governing the relevant services. In that case, the separate agreement replaces these Standard Terms for those services, unless it expressly incorporates them. No additional Client originating terms may be imposed on Enigma unless agreed in writing. These Standard Terms may only be amended if in writing and signed by Enigma and the Client.

Nothing in these Terms limits any right or obligation that cannot lawfully be excluded, including under the Australian Consumer Law.

1. Acceptance, scope and changes. The Client must approve in writing the relevant estimate, proposal, scope of work or written instruction before Enigma proceeds. Approval may be by signature, email or other written confirmation and confirms acceptance of these Terms. Estimates are valid for 90 days unless stated otherwise. If anything material changes, including the brief, timing, materials, production requirements, supplier costs or assumptions, Enigma will let the Client know and discuss any required estimate update before proceeding. Enigma will provide the services expressly described; anything not included is out of scope. Additional work, urgent work, changes after approval, cancellations, postponements, author's corrections beyond two rounds and unavoidable approved or committed third-party costs may be charged separately and require Enigma's written approval.

2. Authorised instructions and timing. Enigma may rely on instructions, approvals or feedback from anyone who reasonably appears to hold ostensible authority to act for the Client. Timing estimates and production schedules are prepared in good faith. Enigma will use reasonable endeavors to meet agreed timing, but timing may be affected by Client approvals, supplied materials, supplier availability, the acts or omissions of third parties, platform requirements and other factors outside Enigma's reasonable control. Client delays or delays outside of Enigma's reasonable control may result in revised timing and additional costs.

3. Ideas, intellectual property and usage rights. Once the Client has paid all amounts due for the relevant work, the Client owns the final approved deliverables created by Enigma for that work. This does not include Enigma's working files, source files, editable files, templates, methodologies, prompts, AI workflows, know-how, know-why, preliminary concepts, alternative creative routes, pitch materials or proprietary materials, unless Enigma agrees otherwise in writing. Client material remains the Client's property, and the Client allows Enigma to use it as needed to perform the services. Any third-party materials, including fonts, stock imagery, talent, photography, music, software, production suppliers and other third-party materials, remain subject to the applicable third-party license, usage terms and costs. Concepts, pitch materials or preliminary work not approved and paid for must not be used, copied, shared or given to another supplier without Enigma's written permission. This Clause survives termination of this agreement.

4. Third-party licenses, suppliers and production. The Client must comply with, and where included in an approved estimate, proposal, scope of work or services schedule, pay for any third-party license, usage rights and costs for items such as fonts, stock imagery, talent, photography, music, software, production suppliers and other third-party materials or services. Enigma will not commit the Client to any extended, renewed, additional or expanded usage rights, including rollover or renewal fees, unless these are included in the approved estimate or separately approved by the Client in writing. Out-of-pocket expenses, production, materials and approved third-party costs are additional unless expressly included. Enigma may charge a reasonable administration or handling fee for coordinating approved third-party suppliers or costs. Where a claim relates to goods, services or rights supplied by a third party, Enigma will provide reasonable assistance to help the Client pursue the supplier, but Enigma is not responsible for supplier acts, omissions, defects or usage restrictions except to the extent caused by Enigma's own breach, negligence or failure to exercise reasonable care in selecting or managing the supplier. Printed or produced goods are accepted unless defects are notified in writing within seven days of delivery. This Clause survives termination of this agreement.



5. Proofs, approvals and Client responsibilities. The Client is responsible for checking and approving all work before it is published, produced, broadcast, uploaded, distributed or used, including artwork, copy, scripts, edits, master files, TV commercials, video, social content, digital ads, websites, audio, claims, pricing, legal statements and supplied materials. Approval confirms the Client has reviewed and accepted the work for accuracy, suitability, legality and compliance. Post-approval errors, omissions or changes may incur additional charges. The Client warrants that its materials, instructions and approvals are accurate, complete, lawful, not misleading or defamatory, and do not infringe third-party rights or confidentiality obligations. Unless expressly engaged in writing at the Client's cost, Enigma does not provide legal, regulatory, industry-code, product, packaging, labelling, therapeutic, financial services, privacy, platform, broadcast-clearance or other compliance advice or reviews. The Client indemnifies Enigma against claims or losses arising from Client material, instructions, approvals, use of deliverables or breach of these Terms. This Clause survives termination of this agreement.

6. Payment, disputes and overdue accounts. Enigma may invoice monthly for work in progress, completed work, expenses and approved third-party costs. Unless agreed otherwise, payment is due within 30 days from the end of the month in which the invoice is issued. If a specific project requires a 50% deposit before production begins or supplier commitments are made, Enigma will let the Client know well in advance. If the Client has any concern with an invoice, the Client should let Enigma know in writing, including by email to the client manager, with brief reasons within 7 days of receipt so the parties can resolve it promptly. Any undisputed amount remains payable by the due date. If an account becomes overdue, Enigma will work with the Client to resolve the issue; however, Enigma may pause or withhold further work, materials or deliverables until the overdue amount is paid. Any supplier charges, recovery costs or additional costs caused by late payment remain payable by the Client. This Clause survives termination of this agreement.

7. AI, confidentiality, privacy and data security. Enigma may use artificial intelligence, automation and similar tools to assist in developing, producing or refining work. If AI is used for work, then Enigma will identify this work to the Client on a case by case basis. Enigma will not intentionally submit Client confidential information into publicly available AI tools without approval and will take commercially reasonable steps to review AI-assisted output before delivery. The Client remains responsible for reviewing, approving and deciding how it uses, modifies, publishes or relies on AI-assisted content and work. Enigma does not warrant that AI-assisted outputs will be unique, copyrightable or free from similarity to third-party material. Each party must keep confidential information confidential, use it only for the engagement, comply with applicable privacy laws, maintain reasonable data and information safeguards and promptly notify the other of any actual or suspected data breach affecting the engagement. This Clause survives termination of this agreement.

8. Subcontractors, exclusivity, archiving and credit. Enigma and the Client are independent contractors; nothing creates a partnership, employment, fiduciary or agency relationship. Enigma may use subcontractors and remains responsible for exercising reasonable care in selecting and managing them. Enigma does not provide services exclusively unless agreed in writing. Enigma will take reasonable care to retain completed client files and final deliverables in good order for at least 12 months after completion, unless agreed otherwise. Enigma may archive working files and take reasonable care retrieving archived materials, but does not guarantee indefinite storage or availability. Enigma is not responsible for files that become corrupted, damaged or unavailable over time except to the extent caused by Enigma's failure to take reasonable care. Retrieval may incur a minimum fee of \$180 or such other reasonable fee notified to the Client. Unless expressly agreed, working files, source files and editable files are not included in final deliverables. Subject to confidentiality and written restrictions, Enigma may retain samples or images of completed work for records, to comply with legal obligations concerning document retention, credentials, awards or promotional purposes and may request a credit where appropriate. This Clause survives termination of this agreement.

9. Platforms and digital services. Enigma is not responsible for third-party platform or technology outages, policy changes, algorithm changes, account restrictions, reporting changes, performance impacts or other circumstances outside its reasonable control. Digital or campaign performance may be affected by Client inputs, market conditions, consumer behaviour, platform settings and supplier decisions. Any publishing, distribution or platform-related services are subject to the agreed scope and applicable third-party terms.

10. Termination. Either party may end the engagement on at least 30 days' prior written notice. Enigma may terminate immediately if the Client materially breaches these Terms, fails to pay an overdue invoice, becomes insolvent or requires Enigma to act unlawfully or in breach of applicable platform or supplier terms. On termination, the Client must pay for work performed, materials used, expenses incurred, approved supplier costs and approved third-party commitments, including third-party cancellation fees and Enigma services performed up to the termination date, including during the notice period.



11. Liability, force majeure and governing law. Enigma will provide services with reasonable skill and care. To the maximum extent permitted by law, implied conditions and warranties are excluded. Enigma is not liable for indirect, consequential, special or economic loss, including loss of profit, revenue, opportunity, goodwill, data loss, business interruption or reputation. Enigma's total liability is capped at the fees paid for the relevant services giving rise to the claim, excluding third-party costs and disbursements. Where liability cannot lawfully be excluded, Enigma's liability is limited, at Enigma's election, to resupplying the services or paying the cost of resupply. Enigma is not liable for delay or failure caused by events beyond its reasonable control. The Client acknowledges that Enigma has not made any warranties or representations about the commercial success, sales performance, brand awareness or business outcomes of the services. If any part of these Terms is unenforceable, the remainder continues. These Terms are governed by the laws of New South Wales, Australia and the parties submit to the exclusive jurisdiction of the Courts sitting in New South Wales, Australia. This Clause survives termination of this agreement.

